

Foster Medical Malpractice Claim

Plaintiff Elizabeth Foster brings this medical malpractice action against defendant Dr. Richard Stevens and City Hospital arising from surgical complications. The plaintiff underwent gallbladder removal surgery performed by the defendant on March 20, 2022. During the surgery, the defendant allegedly severed the plaintiff's bile duct, requiring additional emergency surgery and prolonged hospitalization. The plaintiff alleges the defendant was negligent in performing the surgery and failed to meet the applicable standard of care. The plaintiff's expert witness, a board-certified surgeon, testified the bile duct injury was caused by the defendant's failure to properly identify anatomical structures and use appropriate surgical technique. The plaintiff seeks damages for additional medical expenses, pain and suffering, and permanent injury. The defendant denies negligence and asserts the bile duct injury was a known risk of the surgery that can occur even with proper technique. The defendant's expert testified the surgery was performed according to accepted standards and the injury was an unavoidable complication. The defendant argues the plaintiff was properly informed of the risks through the consent process. The jury found the defendant negligent and awarded the plaintiff \$750,000 in damages. The court finds the verdict supported by the evidence and enters judgment accordingly. The defendant's motion for judgment notwithstanding the verdict is denied.